

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC051313: LUIS ALBERTO MONTES vs GENERAL MOTORS
07/07/2026 in Department 44
Demurrer and Motion to Strike to Plaintiff's First Amended Complaint

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

Defendant General Motors, LLC (“GM”) *unopposed* demurrer to Plaintiff Luis Alberto Montes (“Plaintiff”) cause of action under the CLRA for failure to provide required notice under Civil Code section 1782 and failure to plead fraud with the requisite specificity (“Demurrer”).

GM’s *unopposed* motion to strike punitive damages (“MTS”)

Tentative Ruling:

GM’s unopposed Demurrer is SUSTAINED with leave to amend. Plaintiff fails to plead compliance with the notice requirement under Civil Code section 1782. In addition, Plaintiff’s conclusory allegations that GM engaged in unfair or deceptive acts or practices within the meaning of Civil Code section 1770. (Cf. *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1137-40 [affirming trial court’s ruling to sustain demurrer without leave where facts alleged in complaint are not actionable].) Here, the FAC asserts only conclusory language that parrots the language of the statute, rather than any facts, whether actionable or not, to state a claim under the UCL

GM's unopposed MTS is GRANTED. Because Plaintiff's claim for punitive damages can arise only out of the CLRA claim, the Court GRANTS the motion.

Plaintiff must file an amended pleading within 20 days.